

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT

Respondent APS East Coast Inc (“APS”) by and through their attorneys Mills Black LLP, hereby move pursuant to the Federal Maritime Commission’s (the “Commission”) June 21, 2023 Initial Order and 5(b) of the Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of certain sections of Respondent’s Exceptions to the Initial Decision.

Confidentiality is necessary because Respondent’s Exceptions to the Initial Decision contains descriptions of confidential business information, namely the terms of the exclusive stevedoring agreement between Respondent and Ceres Terminals Incorporated which is marked as Confidential. Pursuant to Rule 5(b), Respondent will file both a confidential and public version

of its Exceptions to the Initial Decision.

For the foregoing reasons, Respondent respectfully requests that the descriptions of confidential terms of the agreement which are highlighted in the document be kept confidential and not disclosed to the public.

Dated: February 7, 2025

Respectfully Submitted,

By: /s/ **Peter F. Black**

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Counsel to APS East Coast, Inc.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
2. Gerald A. Morrissey III - *Counsel for Complainants*
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Dated: February 7, 2025

Respectfully Submitted,

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